

THE ENGLISH LEGAL SYSTEM

SOURCES OF LAW:

The below list is in **order of priority** starting with the highest priority. Statute will always take precedence over common law and equity and common law will, most of the time, take precedence over equity.

Statute:

Acts, made by Parliament. Unless Parliament expressly repeals it, it remains in effect.

Common law:

A precedent or case law. The reason for having common law is because it would be unjust to handle the same facts in different ways at various times.

Stare decisis = 'the decision stands'. Judicial precedent will have binding power. This roots in ancient tradition.

Equity:

Fills up the gaps that the common law has left by creating rules supplementing the common law to achieve justice. Equitable remedies entail a judge ordering one party to do or refrain from doing something.

Equitable remedies include the following:

- * Injunctions, both permanent and interim
- * A unique performance
- * Contract revocation or reformation
- * Trust

Custom:

Local legislation or a long-standing tradition.

THE COMMON LAW SYSTEM:

The English legal system is a **common law system**. In this system, the court makes decisions by referring to statutes, regulations, and judgments from previous cases.

The role of the judges:

In this system, the judges act as **umpires** between the parties and decide on the outcome of the dispute. They do not act as **inquisitors** and thus, will not question witnesses.

Parts of an act of Parliament:

In the exam, you may be asked to identify parts of an act by name, so make sure that you remember the below list.

- * **Preamble:** "BE IT ENACTED by the Queen's/King's most Excellent Majesty, by and with the advice of the Lords Spiritual and Temporal, and Commons, in this Present Parliament Assembled, and by the Authority of the same, as follows:"
- * **Extent Provision:** "The following provisions of this Act extend to England and Wales, Scotland, and Northern Ireland – (a) sections 1 to 4; (b) section 12; (c) sections 32 to 53."
- * **Short title:** Companies Act 2006
- * **Enabling Provision:** "The following provisions come into force on such day as the Secretary of State may by regulations appoint."

Types of legislation:

1. **Primary legislation** – legislation passed directly by Parliament.
2. **Secondary legislation** – statutory instruments (these are called Codes, Orders, Regulations, Rules)
3. **Tertiary legislation**

STATUTORY INTERPRETATION:

In the UK, the **doctrine of parliamentary sovereignty** (supremacy) applies.

Parliamentary sovereignty = the courts do not have the power to amend Acts of Parliament or find that an act is invalid.

The courts will **interpret statute** and use different **methods to interpret them**. You need to memorise the different rules of statutory interpretation for your exam and be able to tell which example belongs to which rule.

Literal rule:

The court will use the **ordinary and literal meaning** of the words of the statute.

Use this rule if the meaning of the words in the statute is unambiguous. If the words in the statute are clear, they must have been intended to be applied using their ordinary meaning.

Example:

A statute makes it an offence to vote with another person's name who is entitled to vote. David votes using his deceased friend's name. The judge held that David was not guilty of an offence as a dead person is not entitled to vote.

The judge applied the literal rule because the words of the statute were unambiguous, even if the intention of the legislator must have been different from this judgment, which may thus be harsh/undesirable.

Golden rule:

The court will use **something other than the ordinary and literal meaning** of the words of the statute to avoid an absurd result.

If the plain meaning of the phrases results in a "manifest absurdity," use the golden rule to avoid absurdity and inconsistency.

Example:

A statute makes it an offence to be in the vicinity of a commercial warehouse without authorisation. A man is found inside a commercial warehouse, so technically, not in the vicinity, but the judge still finds her guilty of an offence.

Mischief rule:

The mischief rule focuses on the **reason** for which Parliament passed the legislation rather than the wording of the statute. What **problem** was the statute designed to remedy?

Example:

A statute makes it an offence to sell illegal drugs in any public place. A woman was arrested for selling illegal drugs in her flat. The judge interpreted the statute as including selling illegal drugs from a private place.

The purposive approach:

The court may also **look at extraneous documents** such as Hansard (contains debates on the statute) to determine the reason why the statute was passed.

Ejusdem generis:

If there are any ambiguous general words in a statute, which follow specific words, the general words should be interpreted as **referring to things of the same type** as the specific words.

Example:

A statute prohibits the use of firearms, explosives, knives or any other type of offensive weapon in the cinema. A man then proceeded to stab another person in the cinema with a pen. The man was charged with possession of a dangerous weapon under this statute.

The judge applied the ejusdem generis rule and found that the term "offensive weapon" was referring to items of the same type as in the list: so items such as firearms, knives and explosives. A pen did not fit into this list as it is not an offensive weapon.

Noscitur a sociis:

The **context** might help you understand words with ambiguous meaning. When the word has been defined, it does not apply.

Expressio unius exclusio alterius:

If there is a **list** in the statute, listing specific items of a class **without a general catch-all term**, other items of the same class are impliedly excluded.

Example:

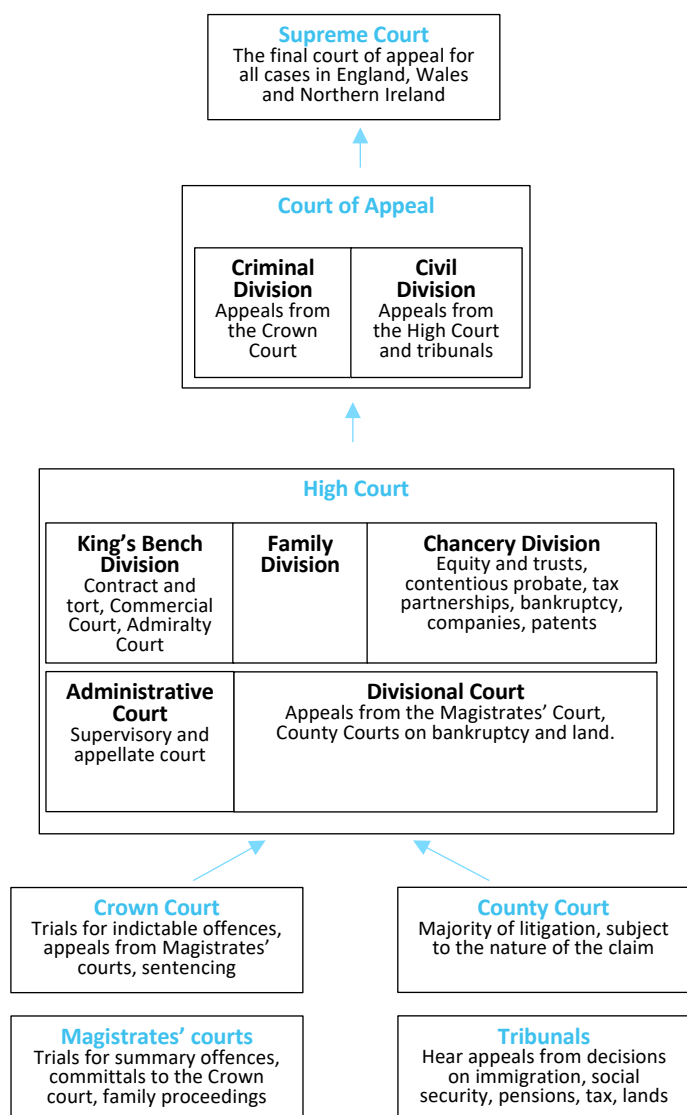
A statute provides that places of public entertainment that sell food must obtain a licence. This statute provides that cinemas that sell popcorn, ice cream and/or sweets are excluded from this requirement. A cinema owner, selling sandwiches in addition to popcorn and sweets was fined for not having a licence.

The judge held that because there was no general term after the "popcorn, ice cream and/or sweets", this meant that cinemas selling anything else will not fall within the exemption.

Pari materia:

Ambiguous words should be **interpreted consistently with the same words in other statutes** touching on the same matter.

THE ENGLISH COURT SYSTEM



Solicitors can represent clients in the County Court but cannot represent them in the Crown Court or in the High Court unless obtained higher rights of audience.

CIVIL COURTS:

Civil courts:

- Supreme Court
- Court of Appeal (Civil Division)
- High Court
- County Court

Track Allocation and case management:

- * **Small claims track** – Value of the claim is less than £10,000 (£1,000 for personal injury cases)
- * **Fast track** – Value of the claim is more than £10,000 but less than £25,000, with a one-day trial. (Between £1,000 and £10,000 for personal injury cases)
- * **Multi-track** – Value of the claim is more than £25,000.

After a claim has been assigned to a certain track, the court might order it to be reallocated to another track. A party that is unhappy with the reallocation order may appeal it to the next higher court or file an application with the judge who made the reallocation decision.

Which court?

High court – Value of the claim must be at least £50,000.

High court divisions:

1. **King's Bench**: deals with multi-track claims for all common civil law actions.
2. **Chancery division**: deals with claims involving land contracts, trusts and wills
3. **Family division**: deals with family proceedings – adoption and complex divorce cases.

CRIMINAL COURTS:

The **Crown Prosecution Service (CPS)** will initiate criminal cases once investigation is finished. Makes judgments on which charges should be filed.

Cases are prepared and presented to the Crown Court and Magistrates' Court.

Courts of first instance:

- * **Magistrates' Court:**
Three lay magistrates (the bench) or a full-time district judge. The magistrates deal with all matters in their court: bail, plea, allocation, trial, the admissibility of evidence and other legal issues, and sentence.

Maximum sentence that the Magistrates' Court can award:
6 months for a single offence and 12 months for multiple offences.

- * **Crown Court:**
One circuit judge (or a part-time judge called a recorder). The judge is responsible for all matters in their court except determining guilt. Unless the Defendant enters a guilty plea, this is decided by a jury at trial. **The judge is the arbiter of law, and the jury is the arbiter of fact.** The jury can only decide guilt based on what it hears in court.

Voir dire = a trial within a trial in the absence of the jury (regarding admissibility of evidence)

- * **Youth court:**
Deals with offenders under 18.

Appeal (or Appellate) courts:

- * Supreme Court
- * Court of Appeal
- * Divisional Court
- * Crown Court (hears appeals from the magistrates' court. In this case, composition of the court changes; a circuit judge sits with two lay magistrates. They alone will hear re-trials and decide sentence)

Classification of offences:

All offences will start in the Magistrates' Court.

1.

Summary only offences:

Least serious, dealt with at the Magistrates' Court (start to finish).

Examples: shoplifting under £200, criminal damage, assault, driving without insurance and other motoring offences

2.

Triable either-way offences:

These offences can be tried in the Magistrates' Court or Crown Court. An either-way offence will start in the Magistrates' Court and might, proceed to the Crown Court.

Examples: shoplifting over £200, deception, fraud, sexual offences, bigamy, actual bodily harm (ABH), theft, burglary, affray

A triable either-way offence will proceed to the Crown Court if:

- * The circumstances of the offence are serious
OR
- * The Defendant wants a trial before a jury – **Crown Court has a jury but not the Magistrates' Court.**

3.

Indictable only offences:

The most serious offences will start in the Magistrates' Court and will then be sent to the Crown Court for trial.

Examples: murder, manslaughter, attempted murder, rape, robbery, wounding/inflicting grievous bodily harm (GBH) with intent, trafficking a class A drug, burglary with violence/threatened violence.

APPEALS:

Civil appeals:

Original hearing by	Appeal to
County Court District Judge	County Court Circuit Judge
County Court Circuit Judge	High Court Master
High Court Master	High Court Judge
High Court Judge	Lord Justice of Appeal in the Court of Appeal
Lord Justice of Appeal in the Court of Appeal	Justice of Supreme Court

Permission:

- * You need permission to appeal.
- * Apart from appeals to Supreme Court, you have 21 days from the original decision to appeal.

Permission will be granted only if:

- The claim has a real prospect of success
OR
- Some other compelling reason why appeal should be heard

Criminal appeals:

From the Magistrates' Court:

1. The Defendant has a right to appeal to the **Crown Court**.
2. The Defendant can appeal the conviction and the sentence, but if they pleaded guilty, they could only appeal the sentence.
3. The appeal results in a full re-hearing of the case.
4. The Prosecution and the Defendant **can appeal to the High Court** on the ground that the decision was wrong in law or was made outside of the Magistrates' Court jurisdiction (ultra vires).
5. The application must be made in writing **within 21 days** of the decision being appealed.
6. Only legal arguments can be made, there will be no rehearing of evidence.

From the Crown Court:

1. The Defendant may appeal from the Crown Court to the **Court of Appeal** against conviction or sentence.
2. The Defendant must seek leave to appeal from the trial court or from the Court of Appeal.
3. If permission is sought from the Court of Appeal, application must be lodged within **28 days** of the decision being appealed.
4. **Appeal of sentence can be based on:**
 - Decision being wrong in law
 - Decision being wrong in principle
 - OR
 - Manifestly excessive
5. Prosecution can appeal rulings made by the judge during trial but may not appeal jury decision to acquit.

From the Court of Appeal:

The Defendant has a right to appeal to the Supreme court if:

- Court of Appeal or Supreme Court grants leave
- Court of Appeal certifies that a point of law of general public importance is involved.

SYSTEM OF PRECEDENT:

The UK legal system follows the principle of "Binding Precedent" or "Stare Decisis".

Stare Decisis = the decision stands. This means that any prior decisions made by the court will stand.

Vertical binding effect/vertical privity:

Under this system of precedent, prior decisions are binding on new decisions and this works from the top down, so the **decisions of the higher courts will bind the lower courts** if similar facts and similar laws were involved.

Supreme Court:

- * All subordinate courts are bound by precedent
- * The **Supreme Court** is **not** bound by its previous decisions.
- * Ability to overrule itself, albeit does so infrequently

High Court:

Stare Decisis from the Court of Appeal and the Supreme Court binding.

Non-appellate courts:

- * Cannot set a precedent for itself
- * Binding on lower courts

Horizontal privity:

- * There is some horizontal privity in this system.
- * **Civil Court of Appeal** decisions are **binding** on future Court of Appeal cases.
- * **Criminal Court of Appeal** decisions are **binding** on future Court of Appeal cases, but the court has a discretion to depart from it if the earlier decision is deemed wrong.
- * **High Court** decisions are **binding** in future High Court cases if the court was acting as an **appellate court** but **not** if it was acting as a **trial court**.

What will be followed:

Ratio decidendi:

- * The legal theory on which a decision is founded
- * Cases that are comparable are bound together
- * The ratio created a binding precedent.

Obiter dictum:

- * Judge's statement on things unrelated to the case at hand, such as if the facts were different
- * Convincing, but not binding.

Minority opinion:

Where there are three judges or more, only the decisions of the majority will be binding. Dissenting judgments are only persuasive, not binding.

CONSTITUTIONAL LAW BASICS

UNCODIFIED CONSTITUTION:

The UK has an uncodified constitution, which means that **there is not a single, written source of the constitutional rules.**

The UK's constitution outlines the powers of the branches of government and regulates the relationship between the state, its institutions and its citizens.

THE UK CONSTITUTION:

The UK's constitution includes:

1. Acts of Parliament
2. Common law
AND
3. Conventions

The principle of the **rule of law** informs the UK constitutions and includes the **following rules:**

- * The law should be applied fairly
- * The government should act in accordance with the law
- * Laws should not have retroactive effect. – **this means that a law cannot be made to make an act committed in the past illegal.**

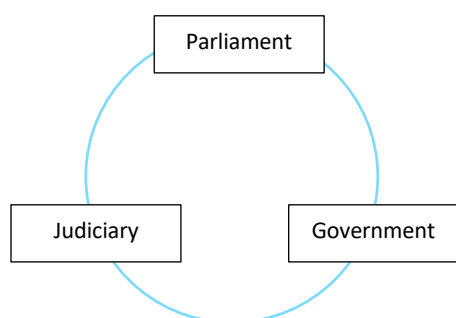
The UK constitution is **not entrenched**, which means that it does not have a higher status than other laws.

SEPARATION OF POWERS:

Three powers:

1. Decision making powers – Parliament
2. Executive powers – Executive Government
3. Judicial powers – Judiciary

These powers must be separate from each other.



Parliamentary Sovereignty:

The highest source of law in the UK is statute. This is because of **Parliamentary Sovereignty/Supremacy**. Parliament is supreme and may change the constitution if it wishes to do so.

The courts have **no power to strike down/invalidate statute**, however, they may interpret laws. This becomes a form of communication between the courts and Parliament, because if Parliament decides that they do not agree with the court's interpretation, they can amend the statute to make the law clearer.

Royal Prerogative:

The Royal prerogative is a collection of **powers** under the common law **belonging to the Crown**.

Residue powers which remain vested in the Crown, is exercisable by the ministers.

The Ram Doctrine:

Government shall have the power to carry on **ordinary business** even if the power is not explicitly set out by statute/royal prerogative.

Constitutional conventions:

Constitutional conventions = the unwritten rules about how people should act in certain circumstances.

Key conventions:

- * Royal Assent is necessary for a bill to become statute. However, although the Monarch may technically deny giving Royal Assent, under constitutional conventions, the Monarch will always give Royal Assent to a bill passed by Parliament.
- * The Monarch will always act on the advice of the Prime Minister.
- * Government ministers and leadership of the executive branch can be appointed only from among the members of the Parliament.
- * Government ministers must take responsibility for policy failure. – **this means that they must resign if there has been a policy failure.**
- * The government is accountable to the Parliament by government ministers appearing in Parliament to answer questions and to take part in debates.

Devolution:

The UK includes:

1. England
2. Wales
3. Northern Ireland
AND
4. Scotland

The UK Parliament may legislate for all four nations. However, statute has now set out that Northern Ireland, Scotland, and Wales also has **separate powers to legislate** and the power to operate their own government to develop their own laws.

The UK's devolution is **asymmetric**, as the extent of devolution to each nation is **not equal**.

CONSTITUTIONAL PRINCIPLES:

The doctrine of Parliamentary Sovereignty:

- * Parliament has the power to make/unmake any law whatsoever.
- * No person or body is recognised as having the right to override/set aside an Act of Parliament, not even the judiciary.
AND
- * No Parliament can bind its successors.

The Enrolled Bill Rule:

The courts **cannot** question the validity of an Act of Parliament and **must give effect to them**.

Fundamental rights:

Certain rights exist to give effect to the rule of law and these rights are collectively called fundamental rights.

Rule of law = laws should not be applied retrospectively and should be applied fairly.

Two key rules in relation to fundamental rights:

1. Only **Parliament may interfere** with the fundamental rights through statute expressly allowing for these fundamental rights to be breached in certain circumstances.
OR
2. If the statute that is being examined by the court does not state this, then the court will **interpret the act** in a way to make sure it **complies with the rule of law** and fundamental common law rights.

The Human Rights Act: Human Rights Act 1998

The Human Rights Act requires statute to be interpreted in a way which is **compatible with the European Convention on Human Rights (ECHR)**. – which ensures that human rights are protected from breach by a public body.

If this is not possible, given the wording of the statute, then the court will make a **declaration of incompatibility**.

This declaration will **not make the law invalid**, but simply acts as a signal to Parliament that they should consider amending the statute to make sure that it is compatible with the ECHR.

Judicial review:

The actions/decisions of public authorities can be reviewed by the court in a judicial review action. This is a review of whether the public body arrived at the decision following the **correct procedure**.

CONSTITUTIONAL LAW – PARLIAMENT

MEMBERS OF PARLIAMENT:

The UK Parliament has a two-house/two-chamber system.

House of Commons:

- * The House of Commons is the first chamber of the UK Parliament.
- * Members of the House of Commons are elected for 5 years **unless**:
 - A motion of no confidence is passed before the expiry of the 5-year period.
 - OR
 - At least 66% of the MPs vote in favour of an early general election.
- * MPs must be at least 18
- * **MPs cannot be:**
 - Civil servants
 - Members of the House of Lords
 - Members of the Judiciary
 - Members of the armed forces
 - Members of the police force

House of Lords:

- * The House of Lords is the second chamber of the UK Parliament.
- * It is independent from the House of Commons. The Lords shares the task of making laws and checking the work of the government.
- * The House of Lords is unelected.
- * **The House of Lords include:**
 - **92 hereditary peers** (persons at the rank of Duke, Earl, Viscount or Baron)
 - **Life peers** appointed by the Monarch on the advice of the Prime Minister
 - AND
 - **Lords Spiritual** (the 26 most senior bishops of the Church of England)

Speaker of the House of Commons:

- * Their role is to maintain order in the House of Commons during debates.
- * The Speaker is chosen by the MPs and is expected to be impartial.

STEPS OF PASSING A BILL:

Each **session of Parliament** (a period of 12 months) begins with the **King's Speech**, in which the King reads out a speech prepared by the government outlining the government's legislative proposals for the following session.

Types of bills:

- * **Public bills** – change the law as it applies to the general population
- * **Private Members' Bills** – introduced by MPs and Lords who are not government ministers
- * **Money Bills** – solely concerns taxation or government spending, cannot be vetoed by the House of Lords
- * **Secondary legislations**

To become law, a bill must:

1. Pass through and be approved by the House of Commons
2. Pass through the House of Lords
- AND
3. Receive Royal Assent before the end of the session.

Steps of passing a bill:

1. **First reading:** this reading will formally introduce the bill and explain its intentions.
2. **Second reading:** the principles of the bill are debated.
3. **Committee stage:** the Committee scrutinises the bill line-by-line. They can receive evidence and may make amendments.
4. **Report stage:** the bill is reconsidered by the whole house in light of the amendments and comments of the committee.
5. **Third reading:** the bill's final review before being sent to the House of Lords.
6. Bill goes through the same process in the House of Lords
7. **Amendment Ping Pong:** the House of Lords will request amendments from the House of Commons, and they will send it back to the House of Lords for approval.
8. **Royal Assent:** once approved by the House of Lords, the bill must receive Royal Assent to become law.

Salisbury Convention:

If a government bill is implementing a commitment that the party elected into government made in their manifesto, then the House of Lords will automatically grant a second reading to the bill.

Suspensory Veto: Parliament Act 1911-1949

If the House of Lords blocks statute already passed in the Commons and the bill is passed the next year by the House of Commons again, the bill will be sent for Royal Assent even if the House of Lords blocks it again.

This will essentially suspend the House of Lords' veto on the bill.

Commencement:

Bills will include a commencement date later when it actually received Royal Assent so that the government is given time to make commencement orders and regulations bringing the law into effect.

One statute may have different parts with different commencement dates.

PRIMARY LEGISLATION (STATUTE):

Implementation:

Once the bill passes through Parliament and receives Royal Assent, the act will be implemented.

Implementation happens by the act **being published and made available to the public** and it will become enforceable in the UK on its commencement date.

Once published, the courts, individuals and public authorities **must follow the act** and apply the law set out within it.

The repeal of primary legislation:

Laws will **remain in effect until repealed**.

In some cases, statute may include a **sunset provision** which provides and expiration date for the law, and in that case, the law will stop being valid on the expiration date.

EXPRESS REPEAL	IMPLIED REPEAL
A later Parliament has the right to expressly repeal the act of an earlier Parliament by publishing a new statute with wording to expressly repeal a previous one. In this case, the act will no longer be valid and enforceable. – eg. the Companies Act 1985 was repealed when the Companies Act 2006 was published.	A later Parliament may impliedly repeal an earlier act if there is inconsistency between the earlier act and a new statute. In this case, there is no need for express wording to repeal the previous statute. The doctrine of "implied repeal" does not apply to constitutional statutes.

SECONDARY LEGISLATION:

In some cases, the act will also include a **clause delegating specific authority** (giving power) **to an executive branch** to make more specific laws (secondary legislation) under the principal act.

Secondary legislation = legislation made by the government under the authority granted to it under a statute. – eg. **commencement orders and regulations**.

There are two types of procedures that might be used for enacting secondary legislation: the negative resolution or affirmative resolution procedure.

NEGATIVE RESOLUTION PROCEDURE	AFFIRMATIVE RESOLUTION PROCEDURE
A draft for secondary legislation will be laid in both Houses and it will take effect unless either House rejects the legislation within 40 days.	A draft for secondary legislation will be laid in both Houses and it will take effect only if both House votes in favour.

Whichever procedure is used, amendments **cannot** be made to the draft secondary legislation by either House.

As secondary legislation is made by the government and not Parliament, the **court may strike this legislation** down for not following the rule of law.

PARLIAMENTARY PRIVILEGE:

Freedom of speech and debates or proceedings in Parliament ought not to be impeached or questioned in any court or place out of Parliament.

However, **parliamentary privilege** does not pose any bar to the prosecution of defendants charged with false accounting who, while serving as MPs, made false expenses and allowance claims.

Parliamentary privilege applies to all members of Parliament and provides that **no member of Parliament may be challenged in the court for anything said in Parliament.**

Sub judice rule:

This rule is a convention that prohibits MPs and peers from referring to cases that are currently being heard by the courts during debates.

GOVERNMENT ACCOUNTABILITY:

Collective ministerial responsibility:

Ministers are expected to toe party line in Parliament and in public.

Individual ministerial responsibility:

Ministers responsible for decisions of their department.

CONSTITUTIONAL LAW – THE ROYAL PREROGATIVE

INTRODUCTION:

The Crown = includes the Monarch, the ministers forming His Majesty's Government, the Privy Council, the secretaries of state and civil servants.

Parliament has the power to abolish the royal prerogative powers – no new prerogative powers can be created.

If Parliament decides to replace a prerogative power, the prerogative power is abolished and only the statutory power will exist.

If statute and prerogative powers overlap, statute will take precedence.

Government cannot choose to never implement an act and instead rely on their existing prerogative powers.

Prerogative powers **cannot be used to change the law** or the sources of law.

Statutes are not binding on the Crown unless:

- * The statute expressly states so
- OR
- * If it binds the Crown by implication

TYPES OF PREROGATIVE POWERS:

Royal prerogative powers:

The Crown's powers and also a source of government power that is recognised at common law by the courts.

Ministerial prerogative powers:

Powers exercised by ministers on behalf of the Crown. – eg. **deploying troops, granting passports/pardons, acquiring territories, negotiating/ratifying treaties.**

Although ministers still have prerogative powers, since 2003, the government will customarily seek support of the House of Commons before deploying troops.

Personal prerogative powers:

Powers that are personally exercised by the Monarch. – eg. **dismissing the government, appointing the Prime Minister, granting Royal Assent.**

Legislative prerogative powers:

Powers of the Privy Council to pass Orders of Council (statutory instruments)

Judicial prerogative powers:

Powers to hear appeals from Commonwealth nations to the Judicial Committee of the Privy Council.

Miscellaneous prerogative powers:

- * The right to mine precious minerals
- * The right to construct harbours
- * The right to claim ownership over any sturgeon/dolphin/whales /swans over parts of the River Thames

RATIFICATION OF TREATIES:

The ratification of treaties is within the prerogative powers of the Crown. However, by act of Parliament, the draft treaty must be laid before both Houses of Parliament they have **21 days** to vote against ratification.

If either one of the houses vote against ratification, the government will have a right to explain why they want the treaty to be ratified and the House of Commons will have **21 days** to reject the treaty.

In exceptional circumstances, the government may bypass this requirement and accept the treaty. The act does not define exceptional circumstances.

APPOINTING MINISTERS:

The Crown has the power to appoint ministers, including the Prime Minister. By convention, the Monarch will appoint the leader of the party with the majority of seats in the House of Commons.

After a general election, if a different party gains a majority in the House of Commons, the Prime Minister is expected to resign, and the new majority party will select a leader who will then be appointed to be Prime Minister.

Prime Ministers remain in office until they lose the confidence of the members of the House of Commons.

Cardinal Convention:

A convention that **limits the power** of the Monarch to appoint ministers by requiring them to **only act on the advice of ministers**, and mainly, the Prime Minister.

If the Monarch does not agree with the Prime Minister's choice on any matter, they may **encourage/warn them privately**. In public, the Monarch must always show support towards the Prime Minister's decisions.

CONSTITUTIONAL LAW – GOVERNMENT

CENTRAL GOVERNMENT AND ACCOUNTABILITY:

Prime Minister (also called the First Lord of the Treasury):

Prime Minister = Leads central government supported by a Cabinet which includes the most senior ministers.

Prime Minister's duties:

- * Prime Minister forms the government.
- * This is done by the Prime Minister recommending to the Monarch the ministers to lead the departments that make up central government.
- * Prime Minister meets weekly with the Monarch.
- * Responsible for national security measures and intelligence matters.
AND
- * Responsible for deploying troops.

Prime Minister's powers:

- * May change the organisation of government by abolishing/merging/creating new departments.

The Cabinet:

- * The Cabinet **make** government **decisions collectively**.
- * **Subcommittees** sit beneath the Cabinet. These are established by the Prime Minister who will determine their membership.
- * Subcommittee decisions have the same authority as Cabinet decisions.

Ministers:

Individual responsibility:

Ministers have an individual responsibility for their own actions and must also take responsibility for the operation/conduct of their government.

Collective responsibility:

Ministers have collective responsibility in relation to government decisions.

Confidentiality:

Discussions within the government regarding policy matters are confidential. – **this includes ministers' positions expressed in Cabinet/committees.**

Unanimity:

When a decision is reached by government, all ministers must publicly support the decision. If they cannot do that, they must resign.

Minister's duties:

- * Account to Parliament (report on actions of their department and respond to criticism)
- * Must not mislead Parliament
- * Must behave appropriately in their private life and resign if they fail to do so.
- * **Must personally take responsibility for the failures of their department:**
 1. Policy failures (if so, resign) – **eg. implementation of policies that did not work.**
 2. Operational failures (if so, report it and ensure that this will not reoccur) – **eg. where civil servants failed to follow procedures.**

Members of Parliament:

- * During the **Prime Minister's Question Time**, members of Parliament may ask questions about the conduct of government irrespective of political party.
- * **Every day, Members of Parliament may ask questions from ministers on a rotating basis:**
 - Questions may also be asked in writing, and if so, the department has 7 days to answer.
 - Questions cannot be regarding local authorities, the Monarch, cases heard in court, the affairs of other countries (including Northern Ireland, Scotland and Wales).

Secretary of State:

- * The Secretary of State can administer legislative schemes, this power is granted to them by statute.
- * **Carltona Doctrine:** civil servants within the relevant Secretary of State's department can exercise the power granted to the Secretary of State.

Privy Council:

- * Privy Council meetings are held in secret.
- * Although the Privy Council appears to be an important body, it **plays only a minor role in government** today.
- * Appointments to the council are for life and made by the Monarch on the advice of the Prime Minister.

Privy Council's duties:

- * Advises the Monarch on how to exercise their royal prerogative powers.
- * Issues statutory instruments called Orders of Council.
- * The **Judicial Committee of the Privy Council** hears appeals from independent Commonwealth nations and British Overseas Territories that used to be part of the British Empire. Justices of the Supreme Court are members of this committee.
- * Approves the text of Royal Charters creating new public institutions. – **eg. universities and learned societies.**

Orders of Council:

- * May be **primary legislation**, if made pursuant to the Royal Prerogative
- * May be **secondary legislation**, if made pursuant to statute.

DEVOLUTION:

The UK Parliament may legislate for all four nations. However, statute has now set out that Northern Ireland, Scotland and Wales also has **separate powers to legislate over certain subject areas.**

Scotland and Wales:

The act sets out that **these institutions are permanent parts of the UK constitution**, and they cannot be abolished unless the citizens of Scotland or Wales vote to abolish them at a referendum.

Northern Ireland:

The Northern Irish government is a devolved government established by a treaty – the **1998 Good Friday Agreement**.

After this Agreement, Northern Ireland established the Northern Ireland Assembly and the Northern Ireland Executive.

The Agreement allows for the citizens of Northern Ireland to leave the UK to join Ireland by referendum – and act of Parliament is not needed.

Sewel Convention:

If the UK Parliament is planning on **legislating on a matter that is devolved** to Scotland/Wales/Northern Ireland, the consent of the affected institutions will be required via a 'legislative consent motion'. – even if consent is not given, Parliament will still be able to adopt the legislation.

Legislative consent motion = the means by which a devolved legislature indicates that it agrees for the UK Parliament to pass law on a devolved matter.

Review of legislation passed by devolved legislature:

- * If a **court from one of the devolved nations** believed that the nation's legislature/executive **exceeded their authority** by legislating beyond their power, they may refer the matter to the UK Supreme Court.
- * The **legislature from each nation** may also **refer a bill** to the UK Supreme Court before the bill is submitted for Royal Assent.

ADMINISTRATIVE LAW – JUDICIAL REVIEW

DEFINITION:

A judicial process allowing the courts to scrutinise the actions of the executive agencies/government bodies. When carrying out judicial review, the courts do not scrutinise the merits of the decision made by government bodies, but rather, look to see whether the correct process was used in arriving at the decision.

Two stages of a judicial review claim:

1. STAGE 1 – Permission stage
2. STAGE 2 – Full hearing stage

Applications must be filed in the Administrative Court.

JUDICIAL REVIEW REQUIREMENTS:

To bring a judicial review claim, the below requirements must be satisfied:

1. Judicial review is only available against decisions made by public bodies.
2. Ruling in the applicant's favour must change their outcome.
3. The application must be made within the time limit.
4. The applicant must have standing to bring the claim.
5. Must be a public law issue.
AND
6. One of the grounds for judicial review must apply.

Public bodies:

The decision complained of must have been made by public body, or another body exercising a public function.

Decisions of private businesses, private associations and charities cannot be subjected to judicial review. – eg. private employers.

Bodies that exercise both a public and private function can be subjected to judicial review, but only if in making the decision complained of, they exercised a public function.

If the person seeking judicial review has a contract with the public body, then contract law will govern their relationship and judicial review is not available.

Change of outcome:

Ruling in the applicant's favour must substantially change their outcome. – eg. if the public body would have come to the same conclusion using the correct procedures, which is a possibility, then the claim will not be allowed.

Time limit:

Applications for judicial review must be made promptly but not later than 3 months after the issue first arose.

All other remedies must be exhausted first.

For judicial review of planning decisions:

The application must be brought within 6 weeks from the decision.

Time limits cannot be extended by the parties.

Standing:

The applicant must have sufficient standing to bring a claim.

Standing is reviewed during the permission stage.

Sufficient interest test: The applicant must show sufficient interest.

The Human Rights Act uses a different test for standing – the Victim test which is more limited. Do not confuse the two tests.

Groups usually do not have standing, but the court is likely to find sufficient interest if there is an association or group that is:

- * Responsible
- * Well resourced
- * Has expertise
AND
- * There is unlikely to be an alternative claimant

Public law issue:

The review must be for a public law issue and public law issues can only be reviewed via judicial review.

Exception: if there are mixed issues: private and public law in one matter, the case can be heard at the private law courts.

GROUNDINGS FOR JUDICIAL REVIEW:

Illegality:

A claim of illegality may be based on any of the following assertions:

* The public body acted ultra vires:

Decision of a public authority can be set aside if it exceeds the powers delegated to it by Parliament.

* The public body failed to comply with a specific legal duty:

Public bodies will have a legal duty to take into account equality considerations, therefore, they must take into consideration the following:

- Eliminating discrimination
- Advancing equality
AND
- Minimising/removing disadvantages suffered by those who share a protected characteristic. – eg. age, race, disability, gender reassignment, pregnancy, religion, sex, sexual orientation.

* Took into account irrelevant considerations:

- The public body may only consider factors that are relevant to the power granted to them.
- Powers being used for the wrong purpose, improper purpose or irrelevant consideration must materially influence the decision.

* Acted under an error of law:

Ouster clauses seek to exclude the jurisdiction of the court. If there are ouster clauses in the statute granting power to the public body the applicant will be limited in the type of judicial review claim they can bring.

Ouster clause = a clause stating that the decisions of the public body pursuant to the statute cannot be challenged by way of judicial review.

If the statute delegating power to the public body includes an ouster clause, the court will construe the clause narrowly to interpret it to mean that only legal decisions cannot be challenged. They can still review decisions to see if there was any illegality. – the courts will then review the decision to see if it was legal. If there are ouster clauses in your question, this is the only ground that applies.

* Unlawful delegation:

Unlawfully delegated its power to another. This cannot be justified by administrative convenience.

Procedural impropriety:

A claim of procedural impropriety focuses on whether the decision-maker followed the procedures that are laid down in the statute delegating the power.

A decision may be found invalid for:

* Failure to follow mandatory requirements:

Mandatory requirements:

The decision will be set aside if the mandatory requirements were not followed, even if there is no denial of natural justice. – these will be 'must' or 'shall' requirements in the statute.

Discretionary/directory requirements:

The decision will be deemed valid, if not followed.

* Failure to follow the common law/natural justice:

• **Failed to provide for the right to be heard:**

The applicant was not given a right to be heard before the decision-maker made the decision.

Example 1:

If a person is removed from the country as a result of a public law decision, they must be given an opportunity to respond and have their case heard.

Example 2:

If a company's licence is withdrawn without any investigation when the decision-maker hears rumours that the company is in breach, then this means that the company's right to be heard and respond was breached.

- **Failed to stay unbiased:**
 - Nobody may be a judge of their own cause
 - Bias is present even if it is not demonstrated that the interest has influenced the decision.
 - If **bias** is found, the decision will **automatically be disqualified** and if there is **apparent bias**, the decision will subsequently be **disqualified** after such a finding is made.

The decisionmaker will be deemed **biased** if they:

1. Have a financial interest in the subject matter
OR
2. Have a non-financial interest which is closely connected to the issues raised by the decision.

The court may find **apparent bias** if:

A fair-minded and informed observer, informed of the facts, would conclude that there was a **real possibility of bias**.

- **Failed consult:**
Those, who may be affected by the decision have a right to be consulted and comment on the decisions of the local authority.

The product of consultation must be taken into account when the ultimate decision is taken.

Right to consult arises when:

1. There is a statutory **duty to consult**
2. There has been a promise to consult
3. There is an established practice to consult
OR
4. The failure to consult would lead to conspicuous unfairness.

- **Failed to give reasons for the decision:**
No general duty to give reasons for a decision of a public authority.

Duty to give reasons arises when:

1. The subject matter/interest is important – **such as any decisions involving the question of personal liberty.**
OR
2. The decision appears to be aberrant (unusual, non-standard).

Legitimate expectations:

Failure to meet the legitimate expectation of the applicant could also be grounds for remedies under judicial review.

This can be due to:

1. An explicit promise/assurance
OR
2. Previous actions by the local authority

Examples:

- * If the decision maker has formerly carried a certain policy one way, it is legitimate to expect that it will do so in the future.
- * The decision maker promised a benefit, it would be unfair to dishonour it, even if there were public interest grounds for doing so.
- * The decision maker made a clear and unambiguous promise or representation that gives rise to an expectation.
- * The affected party has an interest in some eventual benefit that it expected to attain or retain.
- * The decision maker possesses the power to make such representation, and the affected party reasonably acted in reliance upon it to their detriment.

Irrationality:

Making an irrational/unreasonable decision will also be a ground for invalidating the decision under judicial review.

Test:

The decision must be so **outrageous in its defiance of logic or of accepted moral standards** that no sensible person would have arrived at it.

Two types:

Wednesbury unreasonableness:

- * No sensible person who had applied his mind to the question would have arrived at it.
- * Courts look at the merits of the decision, rather than at the procedure by which it was arrived at or legal basis on which it was founded.

Proportionality:

Human Rights Act 1998 Recognised where issues of EU law and ECHR are involved.

REMEDIES:

Quashing Order:

- * Nullifies decision by public body.
- * Court can send case back to original decision maker – direction to remake the decision.

Prohibiting order:

- * Acts prospectively
- * Obliges the public authority not to do something

Mandatory order:

- * Compels public authority to fulfil their duties
- * Addresses wrongful failure to act
- * Failure to comply is punishable as a contempt of court

Declaration:

- * Clarifies the respective rights and obligations of parties to the proceedings
- * Parties not obliged to do anything
- * Resolves legal position of parties in proceedings

Injunction:

- * Order may be made by court to stop a public body from acting in an unlawful way
- * Must be mandatory

Damages:

There must either a recognised private law cause of action or a claim under EU law or the Human Rights Act.

Procedural issues concerning remedies:

- * Remedies are discretionary – even if a court finds a public body has acted wrongly, it does not have to grant remedy
- * Relief is not granted if the court finds that the lawful action by the public authority would have led to the substantially same outcome.

EUROPEAN UNION LAW

THE PLACE OF EU IN UK LAW:

Dualist and Monist principles:

Dualist Principle:

The theory treats international law and domestic law as separate. International law only forms part of a domestic law, if accepted by statute or judicial decisions.

Monist Principle:

There is a direct application of international law into domestic law, without the need for ratification.

The effects of Brexit:

European Union (Withdrawal) Act 2018 **European Union (Withdrawal Agreement) Act 2020** All EU law that was part of the UK's legal system at the end of the transition period was converted into new UK law, collectively known as **retained EU law**.

Previous rules:

Doctrine of Direct Applicability: allows EU law to take immediate effect in Member States

Doctrine of Direct Effect: parties can enforce it in national courts

Incorporated EU law:

Pre-Brexit legislation (both primary and secondary), implementing EU directives has been preserved as UK law and it is now called **EU-derived domestic legislation**.

Automatically binding EU regulations have been retained as **direct EU legislation**.

EU law with direct applicability, such as treaties, have been retained as **directly effective EU law**.

Retained decisions of the Court of Justice of the EU (CJEU) are **binding** on the UK domestic courts except for the Supreme Court and Court of Appeal and have been retained as **retained EU case law**.

The UK has the right to repeal and amend retained EU law.

Supremacy and Retained EU law:

If there is conflict between UK law that was enacted before the end of the transition period and retained EU law, then retained EU law will prevail.

However, statute enacted after the transition period is not subject to the principle of supremacy, meaning that the UK can create legislation contrary to EU law.

HUMAN RIGHTS ACT:

Human Rights Act 1998 **The ECHR has been incorporated into UK law so that the UK courts may invoke the ECHR** when making decisions.

Types of rights under the ECHR:

1. **Absolute rights** – rights which cannot be limited at all. – **the rights to life and prohibition of torture**.
2. **Limited rights** – which can be limited under the circumstances described in the act. – **the right to liberty and the right to a fair trial**.
3. **Qualified rights** – which can be limited to achieve a legitimate interest. – **the right to privacy, freedom of thought, religion, expression, assembly, marriage, the ban on discrimination**.

The key human rights and freedoms in the ECHR:

Right to life – Art 2

Everyone's right to life is protected by law. No one shall be deprived of his life intentionally.

Prohibition of torture – Art 3

No one shall be subjected to torture or to inhuman or degrading treatment or punishment.

Prohibition of slavery and forced labour – Art 4

No one should be held in slavery/servitude.

Right to liberty and security – Art 5

Everyone has the right to liberty and security of person.

Right to a fair trial – Art 6

Everyone is entitled to a fair and public hearing within a reasonable time by an independent court/tribunal.

Right to respect for private and family life – Art 8

Everyone has the right to respect for his private and family life and their home.

Freedom of thought, conscience and religion – Art 9

Everyone has the right to freedom of thought, conscience and religion; this right includes freedom to change religion/belief and freedom, either alone or as part of a community, in public /private, to manifest their religion/belief, in worship, teaching, practice and observance.

Freedom of expression – Art 10

Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority.

Freedom of assembly and association – Art 11

Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of their interests.

Right to marry – Art 12

Men and women of marriageable age have the right to marry and to found a family.

Prohibition of discrimination – Art 14

The enjoyment of rights/freedoms set forth in this Convention shall be secured **without discrimination** on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status.

Can a qualified right be restricted?

Proportionality test:

The proportionality test is used when deciding whether action of a public authority that restricts a qualified right is justified:

- The restriction must be designed to meet a legitimate aim sufficiently important to justify interference.
- The restriction must be reasonably connected to achieving its aim.
AND
- The restriction must interfere with the right no more than necessary to achieve its aim, so it must be the least onerous way of achieving the aim.

Judicial deference:

If an issue is **politically controversial**, when applying the proportionality test, the courts should defer the issue to the government or Parliament.

If the actions of a public authority are challenged at the European Court of Human Rights (ECtHR), the public authority might argue that they are entitled to a **margin of appreciation** – this is similar to judicial deference.

Margin of appreciation:

- The ECtHR will likely apply a **narrow** margin of appreciation when there is a consensus among the member states on an issue
- The ECtHR will likely **broaden** margin of appreciation when there is no consensus.

Derogation:

The states may derogate (= deviate from) the rights provided by the ECHR. Derogation is allowed to the extent it is necessary in the event of war/other public emergencies threatening the nation.

Derogation is not allowed in relation to the prohibition of torture, slavery and retrospective criminal offences.

How will the courts apply the ECHR/HRA?

Human Rights Act 1998 **The courts must interpret statute in a way which is compatible with the ECHR** to the extent that this is possible. – the UK court must also follow the interpretation of the ECtHR, where there is a clear line of authority.

If a UK court finds that it is **not possible to interpret a statute** in a way to make it compatible with the ECHR, the court will not be able to strike down the legislation but may make a **declaration of incompatibility**.

A declaration of incompatibility will have no effect on the statute, it merely serves to alert the Parliament that the statute should be amended to make it compatible with the ECHR.

Remedies:

When the court makes a declaration of incompatibility:

Fast track remedial orders:

1. **Non-urgent procedure:** amendments to the law are approved by both Houses of Parliament and they become law 60 days thereafter.
2. **Urgent procedure:** this is the procedure to use if the matter is declared urgent by a government minister. The amendments in this case are immediately effective but must be laid before both House of Parliament and will cease to be effective unless both Houses approve the remedial order within **120 days**.

s.6 Human Rights Act 1998 When a public authority has acted in a way which is incompatible with ECHR: They should seek judicial review.

Requirements:

1. The act must have been carried out by a **public authority**. – this includes a court/tribunal, but members of the House of Commons and House of Lords are excluded.
2. Only the victim of the unlawful action can bring a claim and the victim cannot ask someone else to bring a claim for them.
3. Such HRA claims may be brought within **1 year** from the act complained of. – even though this is a judicial review claim that has a 3 month deadline, in this case, the time limit is extended to 1 year.

Remedies for human rights violation are discretionary.

EQUALITY ACT:

Equality Act 2010 In addition to the ECHR's ban on discrimination, there is statutory protection against discrimination laid down in this act.

The act protects from discrimination based on:

- Sex/sexual orientation/gender reassignment
- Race
- Disability/age
- Religion/belief
- Marital/partnership status
- AND
- Pregnancy/maternity

Why to claim under the Equality Act?

- Claims for violations of the ECHR right to be free from discrimination under the HRA can only be brought if it is **attached to the breach of another Convention right**. However, a claim under the Equality Act can be brought by itself.
- AND
- Claims for discrimination under the act may be brought against private employers, not only public bodies.

Claims for discrimination may be for:

1. **Direct discrimination** – where the victim was treated less favourably because of their protected status.
2. **Indirect discrimination** – where a policy, practice or procedure unfavourably affects a protected group of people.

PUBLIC ORDER LAW:

Public authorities (such as the police) have: Public Order Act 1986

1. The power to limit the right to protest.
2. The power to arrest persons who violate public order.
- AND
3. The power to maintain the King's Peace – meaning: to ensure that citizens can go about their ordinary business without undue interference from other citizens.

These powers must be interpreted in a way that it gives effect to the ECHR and HRA rights to freedom of expression, assembly and association.

So restriction on these rights must only be for the purposes of:

- * National security
- * Public safety
- OR
- * Prevention of crime.

Elements of breach of peace:

Breach of the peace occurs when:

- * When someone genuinely is in fear of harm to themselves or to their property in their presence as a result of an assault/affray/riot or other disturbance.
- * When harm has actually been done to someone or to property in their presence.

OR

- * When harm is likely to be done to someone or to property in their presence.

Can occur on public or private property.

Police officers may take reasonable steps to terminate a breach of the peace or to prevent a likely breach of peace. – this includes arresting someone or forcing entry into private premises.

Types of breach of peace:

Riot:

12 or more persons who are present together **use or threaten unlawful violence for a common purpose** and the conduct of them (taken together) is such as would cause a person of reasonable firmness present at the scene to fear for their personal safety.

Violent disorder:

3 or more persons who are present together **use or threaten unlawful violence**, and the conduct of them taken together is such as would cause a person with reasonable firmness present at the scene to fear for his personal safety.

Affray:

A person is guilty of affray if he threatens unlawful violence towards another and their conduct would cause person of reasonable firmness present at the scene to fear for his personal safety.

Causing fear or provocation of violence:

Words must be used in the presence and earshot of the person to whom they are directed in a public or private place.

Intentional harassment, alarm or distress:

Public or private place, using threatening abusive or insulting words of behaviour, or disorderly behaviour.

Using threatening/abusive words or behaviour likely to cause harassment, alarm or distress:

Within the hearing or sight of a person likely to be caused harassment, alarm of distress in a public or private place.

Public Gatherings:

Public procession:

Public Order Act 1986 If the public plans a parade or march, there are a number of **conditions they must follow**, otherwise, the parade/march will be banned.

Advance written notice of 6 clear days must be given to the police if the procession is intended to achieve one of the following:

- To demonstrate support for/opposition to the views or actions of any person.
- To publicise a cause/campaign
- OR
- To mark/commemorate an event.

The notice must:

- Specify date, time, proposed route, name and address of the persons proposing to organise the procession
- Be delivered to the police station located in the area where the procession will be held
- AND
- Notice is not required for processions commonly held such as funeral marches or Remembrance Sunday parades.

A senior police officer of the area or the most senior police officer present at the march may impose conditions if they reasonably believe:

1. The procession will result in serious damage to property
- AND
2. The procession's purpose is to intimidate others

The conditions can relate to the route or exclusion from any public place.

If no condition can prevent serious disorder, the chief constable can apply to ban all/a specified class of processions for up to 3 months:

- If the procession is to take place in London or Greater London, by applying to the Home Secretary.
- If the procession is to take place elsewhere, by applying to the local council.

Public Assembly:

The regulation surrounding public assemblies is similar to the regulation of public processions.

Public assembly = 2 or more persons in a public place in open air.

No prior notice required. Conditions may be imposed regarding number of people, location and maximum duration.

The senior police officer may impose conditions – grounds:

- * Serious public disorder
- * Serious damage to property
- * Intimidation
- OR
- * Serious disruption to the life of community

Trespassory Assemblies:

Trespassory assembly = 20 or more person on land in the open air on private land without the permission, or in excess of permission from occupier which may result in serious disruption to the community or cause significant damage. – It includes assemblies obstructing traffic and assemblies at Stonehenge.

If the chief constable believes that such an assembly is likely to take place, they can apply to local council for a ban prohibiting all trespassory assemblies. – In London or Greater London, an application must be made to the Home Secretary.

The police may stop anyone they reasonably believe to be on their way to a trespassory assembly which has been banned and direct them not to attend the assembly.

FUNDING CIVIL CLAIMS

LEGAL AID FUNDING:

Which type of claims might qualify?

The following will **not** be funded – alternative funding needed:

1. Personal injury or death – but injury due to clinical negligence is not excluded.
2. Conveyancing, boundary disputes, defamation, wills/trust law, company/partnership law, contract claims
3. Employment cases negligence and consumer cases

What type of funding is available?

Legal help: helping with preparing a case, but not litigation

Help at court: allows advocates to speak for the client at a court hearing without acting formally – one-off help for one trial.

Legal representation: covers preparation + litigation + representation.

Assessing whether a client qualifies for help:

Only available to individuals. **Must pass both the merits + means test.**

Merits test:

Moderate prospect of success is enough.

Will be refused funding if:

- Unlikely to win more than the case costs
- Alternative funding available
- Suitable for the small claims track
- Complaints procedure/ADR is not exhausted
- Unreasonable for the public to fund the case

Means test:

If the client or their **partner** receives benefit they are eligible. – eg. income support.

If no benefits, then consider client's capital and income:

1. **Capital:** disposable capital is max. £8,000. (+ also look at partner's capital)
AND
2. **Income:** gross monthly income is max. £2,657 + disposable income is max £733 per month. (+ also look at partner's income)

Costs consequences of legal aid funding:

If a client keeps/gains money or property at the end of their case, then they may have to repay some or all of the legal aid costs. This is done through a statutory charge.

Example of statutory charge on the money/property:

If client wins damages of £20,000
Court orders costs of £4,000, LAA costs of £5,000
Statutory charge on damages: £5,000 - £4,000 = £1,000

NO WIN NO FEE AGREEMENTS:

Conditional fee agreements (CFA):

If the client wins the case:

Pays to the solicitor:

- * Solicitor's basic fee and disbursements
- * Success fee (pays out of pocket)
- * Insurance premium (pays out of pocket)

Recovers from the other side:

- * Solicitor's basic fee and disbursements
- * Damages

If the client loses the case:

Pays to the solicitor:

- * Disbursements
- * Insurance premium
- * Damages if there is a successful counterclaim

Recovers from the other side: nothing

Damages based agreements (DBA):

If lawyers lose the case, they do not recover any fees.

If lawyers win the case, the max recoverable amount is capped:

1. at 25% of the damages in personal injury cases
2. 35% of damages in employment tribunal cases and
3. 50% of damages in all other cases.

INSURANCE:

If the policy was entered into after 1 Apr 2013: Insurance premium is not recoverable from the other side if the policy-holder then wins at trial and is awarded its costs.

<u>Before the event (BTE) insurance</u>	<u>After the event (ATE) insurance</u>
BTE insurance provides the client with an indemnity for the cost of any legal fees incurred as a result of any future litigation.	Criteria: merits of the case + the level of cover required. – ie. whether a particular insurance company is willing to take on the risk and on what terms.
BTE premiums are relatively low (less than 1% of the insurance cover).	ATE premiums are more expensive (more than 25% of the insurance cover).

FUNDING CRIMINAL CLAIMS

At the police station:

At the police station all suspects are entitled to free legal advice. In addition to this, suspects may pay for solicitors privately.

To determine level of free advice – use the 'Sufficient benefit' test:

1. It is reasonable for the suspect to be provided with help
2. Advice is likely to be sufficient benefit to the suspect

If the matter passes the test: solicitor advises face-to-face at police station, attends interviews, identity parades and public hearing.

Passes eg. if there has been serious maltreatment by the police

If the matter fails the test: only entitled to telephone advice.

Fails eg. minor offence, non-imprisonable or to do with drunkenness.

At the Magistrates' Court:

Apply for a **representation order** as soon as possible to get funding for representation at the hearing.

To obtain this order: D must pass both **means test + merits test**.

Means test:

D will pass this test if:

- * D is under 18
- * D receives unemployment benefits
- OR
- * D receives an income below £12,475 or capital is below £12,475.

Merits test:

s.17 LASPO 2012 D's solicitor will complete a form demonstrating that **it is in the interest of justice that D is legally represented.**

Are the below factors likely?

- * Is a prison **sentence** likely? – eg. a prison sentence will always be likely for serious offences
- * D losing their **livelihood**? – if a custodial sentence is likely, then D will also likely lose their livelihood.
- * D suffering serious damage to **reputation**? – eg. if D was a lawyer or if D is of previous good character.
- * Is it in the **interest of another** person that D is represented? – eg. if it was a violent/sexual offence, the victim will want to be cross-examined by a lawyer rather than the accused.
- * Does the matter involve a substantial **question of law**?
- * The proceedings requiring:
 1. The tracing or interviewing a **prosecution witness**?
 2. Cross-examination of **experts/witnesses**?

If the D fail these tests:

- * D may consult the duty solicitor on one occasion if D is in prison/custody.
- * D may pay for representation privately.